

Smt. Bhagwati v. State of U.P. and others

Allahabad High Court · Division Bench · 10 February 2021 · Writ - C No. 4647 of 2021 · **Writ disposed without merits; instalment plea relegated to clause 6.14; coercive recovery stayed on deposit.**

HEADNOTE

The High Court disposed of a writ seeking quash of a tehsildar recovery citation for electricity arrears and a mandamus for easy instalments, without examining merits, by directing the consumer to represent to the licensee under clause 6.14 of the Electricity Supply Code, 2005. Coercive recovery was stayed if the agreed amount was deposited.

FACTUAL SUMMARY

Smt. Bhagwati challenged a recovery citation dated 4 December 2020 issued by the Tehsildar, Sikandra, Kanpur Dehat, for Rs 4,71,262, and sought a mandamus that the authorities accept those dues in easy instalments. Counsel submitted that she was ready to deposit the entire amount in instalments. Counsel for the licensee (respondent no. 4) stated that the request could be considered under clause 6.14 of the Electricity Supply Code, 2005, and asked for time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment of electricity arrears

HOLDING

Without examining the merits of the recovery citation, the Court disposed of the writ by directing the petitioner to represent to the licensee within three weeks; the licensee was to consider and decide the instalment request strictly in accordance with law, preferably within four weeks. Coercive action was stayed if the petitioner deposited the amount as agreed; default would forfeit the benefit of the order. Licensee's counsel had identified clause 6.14 of the Electricity Supply Code, 2005 as the forum for that consideration. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer's plea to pay electricity arrears in easy instalments was relegated to a representation before the licensee to be considered under clause 6.14, without the High Court deciding the recovery on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 04.12.2020 RECOVERY CITATION AND ENTITLEMENT TO INSTALMENTS

The Court expressly declined to go into merits and left the instalment plea to a clause 6.14 representation. ¶ 1